



SNAP Strikers

Policy 24.20

Effective: July 1, 2021

Introduction

The Tennessee Department of Human Services (TDHS) shall follow state and federal guidelines on how to determine eligibility for households that contain a striker.

Scope

The purpose of this policy is to provide procedures and guidelines for staff to assist them in making a determination of eligibility in the Supplemental Nutrition Assistance Program (SNAP) for households that contain a striker.

Policy

Households with striking members are ineligible to participate in the SNAP program, unless such households were eligible for benefits the day prior to the strike and are otherwise eligible at the time of application.

1. Persons who would be considered strikers include the following:
 - a. Anyone involved in a strike or concerted stoppage for work by employees (including a stoppage by reason of the expiration of collective-bargaining agreement) and any concerted slowdown or other concerted interruption of operations by employees.
 - b. All non-working members of the bargaining unit which is on strike even if they are not members of the union and regardless of whether they are afraid to cross a picket line.
 - c. Employees who participate in sympathy and support strikers who are members of the bargaining unit; or
 - d. Employees who get another job while on strike but who did not resign from the company.
2. Persons who would not be considered strikers include the following:
 - a. Employees who are not members of the bargaining unit and who are not participating in a sympathy or support strike but who claim they are afraid to cross the picket line
 - b. Employees who are fired by the company while on strike
 - c. Employees who officially resign from their job while on strike

- d. Persons whose jobs are no longer available when the company hires permanent replacements for strikers
 - e. Strikers offered different jobs when the company will not allow them to return to their old jobs;
 - f. Employees who are locked out by the company the day before the strike
 - g. Employees laid off when the strike began
 - h. Employees who are not members of the bargaining unit that cannot do their jobs because of the strike (such as truck drivers) or
 - i. Employees who are exempt from the SNAP work registration requirement prior to the strike for reasons other than employment (see also [SNAP Policy 24.11 Work Requirements](#))
3. Any Federal, State, or Local Government Employee, who participates in a strike against such governments and is dismissed from their job because of participation in the strike, shall be considered to have voluntarily quit their job without good cause. See [SNAP Policy 24.16 Voluntary Quit](#)

Supporting Documents

[Procedures for a Household that Contains a Striker](#)

[SNAP Policy 24.11 Work Requirements](#)

[SNAP Policy 24.16 Voluntary Quit](#)

Definitions/Acronyms

Term	Definition
Striker	The refusal of employees to perform work that their employer has assigned to them in order to force the employer to grant certain demands.
SNAP	Supplemental Nutrition Assistance Program

Supersedes

SNAP Policy Manual July 2017 Chapter 45

Authority

7 CFR § 273.1(e)

Application

All TDHS Employees and Contractors

Revision History

Date	Version	Location of Change	Description/Reason for Change
06/17/2021	07/01/2021	New Document	New Document

Approval History

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Clarence H. Carter	Commissioner	06/17/2021	07/01/2021

Current Approver

Clarence H. Carter